

3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$8,787.69, plus costs of \$322.50 and attorneys' fees of \$1,572.59, for a total judgment of \$10,682.78.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

2. 9:00 AM CASE NUMBER: L25-08135

CASE NAME: SYNCHRONY BANK VS. MARISSA HARVEY

*HEARING ON MOTION IN RE: TO COMPEL ARBITRATION AND STAY PROCEEDINGS

FILED BY:

TENTATIVE RULING:

Defendant Marissa Harvey ("Defendant") filed a Motion to Compel Arbitration and Stay Proceedings on November 7, 2025 (the "Arbitration Motion"). The Arbitration Motion was set for hearing on December 9, 2025.

No proof of service of the motion on the plaintiff Synchrony Bank ("Plaintiff") and the Plaintiff has not otherwise filed any papers regarding the Arbitration Motion.

Background

Contractual arbitration, also called private or nonjudicial arbitration, is a procedure for resolving disputes that arise from the parties' agreement. See CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 3.37. Arbitration involves the waiver of the right to a jury trial and generally involves limits on the scope of judicial review of an arbitration decision. *Id.*

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, **arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate.** Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

A petition to compel arbitration is heard "in a summary way in the manner ... provided by law for the making and hearing of motions." Code Civ. Proc. § 1290.2; see *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96. A party is generally not entitled to an evidentiary hearing with live witness testimony, although the Court has discretion to conduct such a hearing; for example, where there are sharply conflicting factual accounts requiring the hearing of such testimony. *Id.*

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary

to its defense. *Ashburn v. AIG Financial Advisors, Inc.*, *supra*, 234 Cal.App.4th at 96, quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.

The Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) (“FAA”) applies to agreements involving interstate commerce. See *Gamma Eta Chapter of Pi Kappa Alpha v. Helvey* (2020) 44 Cal.App.5th 1090, 1098. Where no party raises the issue of interstate commerce or applicability of the FAA, the court applies California law. *Id.*

Analysis

Defendant’s motion contends that the parties’ contract “contains a mandatory arbitration clause ...” See Declaration of Marissa Harvey attached as part of Arbitration Motion, ¶13 and **Exhibit A** (excerpt of cardmember agreement with arbitration clause) (the “Arbitration Clause”).

It appears that a written agreement to arbitrate exists between the parties. It is also evident that the claims at issue in this action are within the scope of and subject to that agreement.

Defendant’s motion constitutes a demand and notice for arbitration in accordance with the terms of the Arbitration Clause. See Arbitration Clause, ¶7 (“The party who wants to arbitrate must notify the other party in writing. This notice can be given after the beginning of a lawsuit or in papers filed in the lawsuit.”). The Arbitration Clause is governed by the FAA. *Id.* at ¶11 (“This Arbitration section is governed by the FAA.”).

Accordingly, the Court finds that a written agreement to arbitrate exists. The Court further finds that there is a controversy between the parties that is subject to that agreement as pled in the operative Complaint by Plaintiff. The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the agreement to arbitrate.

Lastly, the Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

However, no Proof of Service was filed by Defendant regarding service of the motion papers on Plaintiff. For this reason, although the Court is inclined to grant the motion for the reasons discussed above, the Court hereby continues the motion to a new hearing date to permit the moving party Defendant to properly serve the motion papers on Plaintiff and file a Proof of Service.

Disposition

The Court finds and orders as follows:

1. The Arbitration Motion is CONTINUED to **January 13, 2026, 9:00 am, Department 14 (Judge Athanasiou)**. Defendant is ordered to serve the motion papers on Plaintiff forthwith, **along with a copy of this Order**, and to file a Proof of Service with the Court showing such service.
2. If the Plaintiff concedes that there exists a binding arbitration covering the parties’ dispute, the parties are encouraged to meet and confer regarding a stipulation to

participate in arbitration and to vacate the hearing date on the motion.

3. 9:00 AM CASE NUMBER: L25-09463
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. LASHANA STARETON
*HEARING ON MOTION IN RE:
FILED BY:
TENTATIVE RULING:

Defendant LaShana Stareton (“Defendant”) filed a Motion to Quash Service of Summons on October 10, 2025 (the “Motion to Quash”). The Motion to Quash was set for hearing on November 18, 2025.

Defendant failed to give adequate notice of the motion. **Service on the opposing party was not timely done in advance of the motion hearing date.** For service by mail, the minimum notice in advance of the hearing date is sixteen (16) court days, plus five (5) additional calendar days due to service by mail. See Code Civ. Proc. § 1005 and 1013.

A Proof of Service was filed November 4, 2025, reflecting service of the Motion to Quash on Plaintiff on November 3, 2025. That was only nine (9) court days before the hearing date of November 18, 2025.

In the exercise of its discretion, the Court continued this matter to a new hearing date, as set forth below, to ensure that Plaintiff was given adequate notice of the motion. The Court issued its Order dated November 18, 2025 continuing the hearing date to December 9, 2025, which was duly served on all parties.

No opposition has been filed.

Background

Plaintiff Midland Credit Management, Inc. (“Plaintiff”) filed this action on August 25, 2025, alleging a cause of action for breach of contract to collect on an alleged unpaid account in the amount of \$11,713.30.

Analysis

Code of Civil Procedure section 418.10 sets forth a number of different procedural actions that a defendant may take on or before the last day of his or her time to plead (or as otherwise allowed by the court). See Code Civ. Proc. § 418.10(a). Among those is the filing of a motion to quash service of summons on the ground of lack of jurisdiction. *Id.* This includes where a defendant contends that service of the summons was defective. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”), § 4:413-414.

A Proof of Service was filed on September 11, 2025 (the “9/11/25 POSS”), purporting to reflect personal service upon Defendant on September 10, 2025 by a registered process server with ABC Legal Services, LLC. See 9/11/25 POSS, ¶¶1-5.